OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

# Letter to Cr Lou Casmiri questions 'wasted vote' claim and council vacancies

Sent 5 October 2026 · To Cr Casmiri, Mayor White · Response requested by 12 October 2026

**Open letter to Cr Lou Casmiri: where does “wasted vote” come from?**
**Eye on Shoalhaven Council | Monday 5 October 2026**

**Dear Cr Casmiri,**
**This morning the SIG for Shoalhaven Facebook page published a post under your name as Shoalhaven Councillor. It explains how voters elected the current councillors. It tells them that a vote 1 for a specific candidate in a group is not counted toward the group’s total and “can be a wasted vote.”**
**The NSW Electoral Commission, which runs these elections, does not describe voting that way. I am writing publicly because the post is public, and because voters rely on what their councillors tell them about how their votes count.**
**What the Electoral Commission says**
**• Where a ballot paper has group voting squares, a voter can vote above the line for a group, or below the line for individual candidates.**
**• Above the line, a voter puts 1 in one group square, and may then number other groups if they wish.**
**• Below the line, a voter must show preferences for at least half the number of councillors to be elected, and may show more.**
**I have found nothing in the Commission’s voter or candidate guidance that describes a formal below-the-line vote as uncounted. If you mean something narrower by “wasted”, such as a vote that runs out of preferences, I ask you to say so plainly. That can happen to any vote, above or below the line.**
**The post also says an above-the-line vote means “you are actually voting for all candidates in the ticket.” The Commission describes it as a vote for the entire group. For the record, NSW ballot papers have groups, not tickets.**
**How vacancies are filled**
**The post says that after resignations, the next names on a list “are now councillors.” Under section 291A of the Local Government Act 1993, a vacancy that arises within 18 months of an ordinary election can be filled by countback only if the council resolved at its first meeting after that election to use countback. Otherwise it goes to a by-election.**
**A countback is a recount of the ballot papers from the last election. It is a different thing from promoting the next name on a group’s list.**
**What this letter does not cover**
**I have not tested the post’s figures for Ward 3 or for the Tribe Team, and I have not addressed the personal reasons the post gives for any resignation. This letter is only about**

**how a vote counts and how a vacancy is filled. I make no claim about why the post says what it does.**

**Three questions**

**1. What is the source for the statement that a vote 1 for an individual candidate “can be a wasted vote”?**

**2. Will you correct or withdraw the post?**

**3. Were the vacancies you describe filled by countback or by by-election, and under which council resolution?**

**I would be grateful for a reply by 5pm on Monday 12 October 2026. I will report your response, or the absence of one, accurately.**

**Voters make real choices on the strength of what councillors tell them. A clear correction costs very little, and it protects the choices people have on the ballot paper.**

**Yours sincerely,**

**Steve Prothero**

**Eye on Shoalhaven Council**

**Sources: NSW Electoral Commission, How to cast your vote in a local government election (elections.nsw.gov.au); NSW Electoral Commission, Candidate handbook: NSW Local Government elections, Ballot paper formats; NSW Electoral Commission, Countback elections; Local Government Act 1993 (NSW) s 291A.**

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